



Mayday Health v. Jackley, Docket No. 1:26-cv-00078 (S.D.N.Y. Jan 06, 2026),
Court Docket

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U.S. District Court
Southern District of New York (Foley Square)
CIVIL DOCKET FOR CASE #: 1:26-cv-00078-KPF

Mayday Health v. Jackley

Date Filed: Jan 6, 2026
Status: Closed
Nature of suit: 440 Civil Rights: Other
Assigned to: Judge Katherine Polk Failla
Cause: 42:1983 Civil Rights Act
Date terminated: 2026-03-10
Jurisdiction: Federal Question
Jury demand: Defendant

Parties and Attorneys

Plaintiff

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Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Jan 6, 2026	COMPLAINT against Marty J Jackley. (Filing Fee \$ 405.00, Receipt Number ANYSDC-32220414)Document filed by Mayday Health. (Attachments: # 1 Exhibit A - Page Capture of Mayday's Website, # 2 Exhibit B - 12/09/25 South Dakota Governor Press Release, # 3 Exhibit C - 12/09/25 Correspondence from South Dakota Governor, # 4 Exhibit D - Affidavit of Kayla Klemann, # 5 Exhibit E - 12/10/25 Cease and Desist from South Dakota Attorney General, # 6 Exhibit F - 12/19/25 Response to Cease and Desist from Counsel for Mayday, # 7 Exhibit G - South Dakota's Motion for a Preliminary and Permanent Injunction).(Kelly, Chelsea) (Entered: 01/06/2026)
2	Jan 6, 2026	CIVIL COVER SHEET filed..(Kelly, Chelsea) (Entered: 01/06/2026)
3	Jan 6, 2026	REQUEST FOR ISSUANCE OF SUMMONS as to Marty J. Jackley, Attorney General of South Dakota, in his official capacity, re: 1 Complaint,,. Document filed by Mayday Health..(Kelly, Chelsea) (Entered: 01/06/2026)
4	Jan 6, 2026	RULE 7.1 CORPORATE DISCLOSURE STATEMENT. No Corporate Parent. Document filed by Mayday Health..(Kelly, Chelsea) (Entered: 01/06/2026)
	Jan 7, 2026	CASE OPENING INITIAL ASSIGNMENT NOTICE: The above-entitled action is assigned to Judge Katherine Polk Failla. Please download and review the Individual Practices of the assigned District Judge, located at https://nysd.uscourts.gov/judges/district-judges . Attorneys are responsible for providing courtesy copies to judges where their Individual Practices require such. Please download and review the ECF Rules and Instructions, located at https://nysd.uscourts.gov/rules/ecf-related-instructions..(gp) (Entered: 01/07/2026)
	Jan 7, 2026	Magistrate Judge Robert W. Lehrburger is designated to handle matters that may be referred in this case. Pursuant to 28 U.S.C. Section 636(c) and Fed. R. Civ. P. 73(b)(1) parties are notified that they may consent to proceed before a United States Magistrate Judge. Parties who wish to consent may access the necessary form at the following link: https://nysd.uscourts.gov/sites/default/files/2018-06/AO-3.pdf . (gp) (Entered: 01/

Entry #	Filing Date	Description
		07/2026)
	Jan 7, 2026	Case Designated ECF. (gp) (Entered: 01/07/2026)
5	Jan 7, 2026	ELECTRONIC SUMMONS ISSUED as to Marty J Jackley..(gp) (Entered: 01/07/2026)
6	Jan 8, 2026	CERTIFICATE OF SERVICE. Document filed by Mayday Health..(Kelly, Chelsea) (Entered: 01/08/2026)
7	Jan 8, 2026	MOTION for Ambika Kumar to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32233603. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Mayday Health. (Attachments: # 1 Affidavit in Support of Motion for Admission Pro Hac Vice, # 2 Exhibit Certificate of Good Standing, # 3 Proposed Order for Admission Pro Hac Vice).(Kumar, Ambika) (Entered: 01/08/2026)
8	Jan 8, 2026	NOTICE OF APPEARANCE by Laura R. Handman on behalf of Mayday Health..(Handman, Laura) (Entered: 01/08/2026)
9	Jan 9, 2026	MOTION for Adam S. Sieff to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32237505. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Mayday Health. (Attachments: # 1 Affidavit In Support of Motion for Pro Hac Vice of Adam Sieff, # 2 Exhibit A.) Certificate of Good Standing for Supreme Court of California, # 3 Exhibit B.) Certificate of Good Standing for WA, # 4 Proposed Order for Pro Hac Vice of Adam Sieff).(Sieff, Adam) (Entered: 01/09/2026)
10	Jan 9, 2026	MOTION for Nicole Saad Bembridge to Appear Pro Hac Vice for Plaintiff Mayday Health. Filing fee \$ 200.00, receipt number ANYSDC-32238755. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Mayday Health. (Attachments: # 1 Affidavit of Nicole Saad Bembridge, # 2 Supplement Certificate of Good Standing, # 3 Proposed Order Granting Motion).(Bembridge, Nicole) (Entered: 01/09/2026)
	Jan 9, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 7 MOTION for Ambika Kumar to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32233603. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (rju) (Entered: 01/09/2026)
11	Jan 9, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 7 Motion for Ambika Kumar to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 7. (Signed by Judge Katherine Polk Failla on 1/9/2026) (rro) (Entered: 01/09/2026)
	Jan 12, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 9 MOTION for Adam S. Sieff to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32237505. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (bc) (Entered: 01/12/2026)
	Jan 12, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 10 MOTION for Nicole Saad Bembridge to Appear Pro Hac Vice for Plaintiff Mayday Health. Filing fee \$ 200.00, receipt number ANYSDC-32238755. Motion and supporting papers to be reviewed by Clerk's Office staff.</FON. The document has been reviewed and there are no deficiencies. (bc) (Entered: 01/12/2026)

Entry #	Filing Date	Description
12	Jan 12, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 9 Motion for Adam S. Sieff to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 9. (Signed by Judge Katherine Polk Failla on 1/12/2026) (rro) (Entered: 01/12/2026)
13	Jan 12, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 10 Motion for Nicole Saad Bembridge to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 10. (Signed by Judge Katherine Polk Failla on 1/12/2026) (rro) (Entered: 01/12/2026)
14	Jan 14, 2026	MOTION for Preliminary Injunction . Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/14/2026)
15	Jan 14, 2026	MEMORANDUM OF LAW in Support re: 14 MOTION for Preliminary Injunction . . Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/14/2026)
16	Jan 14, 2026	DECLARATION of Adam S. Sieff in Support re: 14 MOTION for Preliminary Injunction .. Document filed by Mayday Health. (Attachments: # 1 Exhibit 1.) Mayday Health's webpage, # 2 Exhibit 2.) U.S Food Drug Administration Center Application Number Approval Package, # 3 Exhibit 3.) Report by U.S. Food and Drug Administration, # 4 Exhibit 4.) Mifeprex REMS Study, # 5 Exhibit 5.) Joint Press Release, # 6 Exhibit 6.) Letter from South Dakota Governor Larry Rhoden dated December 9, 2025, # 7 Exhibit 7.) Affidavit of Kayla Klemann, # 8 Exhibit 8.) Cease and Desist letter dated December 10, 2025, # 9 Exhibit 9.) Adam Sieff Letter dated December 19, 2025, # 10 Exhibit 10.) Plaintiff's Motion for a Preliminary and Permanent Injunction, # 11 Exhibit 11.) U.S. Food and Drug Administration web page dated January 17, 2025, # 12 Exhibit 12.) U.S. Food and Drug Administration web page dated February 11, 2025, # 13 Exhibit 13.) Mayday Health's FAQ webpage dated January 12, 2026, # 14 Exhibit 14.) Mayday Heath's options webpage dated January 12, 2026, # 15 Exhibit 15.) Sophie Dilek Report).(Sieff, Adam) (Entered: 01/14/2026)
17	Jan 14, 2026	DECLARATION of Liv Raisner in Support re: 14 MOTION for Preliminary Injunction .. Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/14/2026)
18	Jan 14, 2026	PROPOSED ORDER. Document filed by Mayday Health. Related Document Number: 14 ..(Sieff, Adam) Proposed Order to be reviewed by Clerk's Office staff. (Entered: 01/14/2026)
19	Jan 14, 2026	CERTIFICATE OF SERVICE. Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/14/2026)
	Jan 15, 2026	***NOTICE TO COURT REGARDING PROPOSED ORDER. Document No. 18 Proposed Order was reviewed and approved as to form. (nd) (Entered: 01/15/2026)
20	Jan 15, 2026	EMERGENCY MOTION for Temporary Restraining Order and Order to Show Cause. Document filed by Mayday Health. (Attachments: # 1 Proposed Order to Show Cause for Temporary Restraining Order).(Sieff, Adam) (Refer to ECF Rule 13.19(b) and (c) for directions regarding promptly alerting the court to this filing.) (Entered: 01/15/2026)
21	Jan 16, 2026	MOTION for Amanda J. Miiller to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32272560. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Marty J Jackley..(Miiller, Amanda) (Entered: 01/16/2026)
22	Jan 16, 2026	MOTION for MARTY J. JACKLEY to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt

Entry #	Filing Date	Description
		number ANYSDC-32276764. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Marty J Jackley..(Jackley, Marty) (Entered: 01/16/2026)
	Jan 16, 2026	Minute Entry for proceedings held before Judge Katherine Polk Failla: Temporary Restraining Order Hearing held on 1/16/2026. Attorneys Adam Sieff, Ambika Kumar, Laura R. Handman, Nicole Saad Bembridge, and Chelsea Kelly, representing Plaintiff present. Attorneys Marty Jackley and Amanda Miiller representing Defendant present. Part one: Oral argument held. The Court will issue its oral decision in a later conference scheduled for 6pm. Part two: The Court GRANTS Plaintiff's motion for a Temporary Restraining Order. The parties shall confer and propose a time for the Court to hold the Preliminary Injunction hearing. (Court Reporter Eve Giniger/recorded) (tn) Modified on 1/20/2026 (tn). (Entered: 01/20/2026)
23	Jan 17, 2026	ORDER TO SHOW CAUSE FOR TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION:ORDERED that Defendant Jackley show cause at a hearing on a date and time to be determined by the Court after the parties report to it their availabilities, but no later than January 30, 2026, in Courtroom 618 of the Thurgood Marshall Courthouse, 40 Foley Square, New York, New York 10007, or by virtual means if the Court so orders, why an order should not be issued pursuant to Rule 65 of the Federal Rules of Civil Procedure enjoining Defendant, during the pendency of this action, from taking any coercive action, formal or informal, to pressure or force Plaintiff Mayday Health to take down or refrain from the publication of the truthful public health information on its website, or the signs it has published publicizing that website; and it is further ORDERED that, sufficient reason having been shown, pending the hearing of Plaintiff's application for a preliminary injunction, pursuant to Rule 65 of the Federal Rules of Civil Procedure, Defendant is temporarily restrained and enjoined from taking any coercive action, formal or informal, to pressure or force Plaintiff to take down or refrain from the publication of the truthful public health information on its website, or the signs it has published publicizing that website; and it is further ORDERED that no security is required, inasmuch as the Court finds no realistic likelihood that Defendant will suffer costs or damages from this temporary restraining order; and it is further ORDERED that personal service of a copy of this Order and the annexed application upon Defendant or his counsel on or before January 21, 2026, shall be deemed good and sufficient service thereof. (Signed by Judge Katherine Polk Failla on 1/17/2026) (rro) (Entered: 01/20/2026)
	Jan 20, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 21 MOTION for Amanda J. Miiller to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32272560. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (rju) (Entered: 01/20/2026)
	Jan 20, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 22 MOTION for MARTY J. JACKLEY to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32276764. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (rju) (Entered: 01/20/2026)
24	Jan 20, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 21 Motion for Amanda J. Miiller to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 21. (Signed by Judge Katherine Polk Failla on 1/20/2026) (rro) (Entered: 01/21/2026)

Entry #	Filing Date	Description
25	Jan 20, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 22 Motion for MARTY J. JACKLEY to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 22. (Signed by Judge Katherine Polk Failla on 1/20/2026) (rro) (Entered: 01/21/2026)
26	Jan 21, 2026	LETTER addressed to Judge Katherine Polk Failla from Adam S. Sieff dated 01/21/2026 re: Scheduling of Preliminary Injunction Motion. Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/21/2026)
27	Jan 21, 2026	MEMO ENDORSEMENT on re: 26 Letter filed by Mayday Health. ENDORSEMENT: Applications GRANTED. The Court will hold the hearing on Plaintiff's motion for a preliminary injunction on January 29, 2026, at 4:00 p.m. in Courtroom 618 of the Thurgood Marshall Courthouse, 40 Foley Square, New York, New York 10007. Should the parties encounter issues with travel, they may appear remotely. In that event, the parties shall notify the Court in advance of the hearing so that it may arrange for their virtual appearances. The Court ADOPTS the parties' proposed briefing schedule. Defendant shall submit his opposition on or before January 26, 2026 at 5:00 p.m. Plaintiff shall submit its reply on or before January 28, 2026 at 5:00p.m. Set Deadlines/ Hearing as to 26 Letter :(Responses due by 1/26/2026, Replies due by 1/28/2026., Motion Hearing set for 1/29/2026 at 04:00 PM in Courtroom 618, 40 Centre Street, New York, NY 10007 before Judge Katherine Polk Failla.) (Signed by Judge Katherine Polk Failla on 1/21/2026) (rro) (Entered: 01/21/2026)
28	Jan 22, 2026	MOTION for Paul S. Swedlund to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32298495. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Marty J Jackley. (Attachments: # 1 Affidavit In Support of Motion to Appear Pro Hac Vice, # 2 Exhibit Certificate of Good Standing, # 3 Proposed Order For Admission Pro Hac Vice).(Swedlund, Paul) (Entered: 01/22/2026)
29	Jan 22, 2026	TRANSCRIPT of Proceedings re: CONFERENCE held on 1/16/2026 before Judge Katherine Polk Failla. Court Reporter/Transcriber: Marissa Lewandowski, (631) 813-9335. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. Redaction Request due 2/12/2026. Redacted Transcript Deadline set for 2/23/2026. Release of Transcript Restriction set for 4/22/2026. (js) (Entered: 01/22/2026)
30	Jan 22, 2026	NOTICE OF FILING OF OFFICIAL TRANSCRIPT Notice is hereby given that an official transcript of a CONFERENCE proceeding held on 1/16/2026 has been filed by the court reporter/transcriber in the above-captioned matter. The parties have seven (7) calendar days to file with the court a Notice of Intent to Request Redaction of this transcript. If no such Notice is filed, the transcript may be made remotely electronically available to the public without redaction after 90 calendar days....(js) (Entered: 01/22/2026)
31	Jan 22, 2026	NOTICE OF APPEARANCE by Marty J. Jackley on behalf of Marty J Jackley..(Jackley, Marty) (Entered: 01/22/2026)
32	Jan 22, 2026	NOTICE OF APPEARANCE by Amanda Miiller on behalf of Marty J Jackley..(Miiller, Amanda) (Entered: 01/22/2026)
33	Jan 22, 2026	LETTER MOTION for Conference DEFENDANT'S LETTER REGARDING MOTION TO DISMISS addressed to Judge Katherine Polk Failla from Amanda Miiller dated January 22, 2026. Document filed by Marty J Jackley. (Attachments: # 1 Affidavit of

Entry #	Filing Date	Description
		Sara Newman, # 2 Exhibit A - Returned Mail, # 3 Exhibit B - Affidavit of Nonservice, # 4 Exhibit C - Affidavit of Nonservice, # 5 Exhibit D - Certificate of Change by Entity, # 6 Exhibit E - Affidavit of Service).(Miiller, Amanda) (Entered: 01/22/2026)
	Jan 23, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 28 MOTION for Paul S. Swedlund to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32298495. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (bc) (Entered: 01/23/2026)
34	Jan 26, 2026	ANSWER to 1 Complaint,, with JURY DEMAND. Document filed by Marty J Jackley..(Miiller, Amanda) (Entered: 01/26/2026)
35	Jan 26, 2026	BRIEF DEFENDANT'S MEMORANDUM OF LAW RE: YOUNGER ABSTENTION. Document filed by Marty J Jackley. (Attachments: # 1 Exhibit A - Affidavit Kayla Klemann).(Jackley, Marty) (Entered: 01/26/2026)
36	Jan 26, 2026	RESPONSE TO ORDER TO SHOW CAUSE re: 23 Order to Show Cause,,,,,,,,, Set Deadlines/Hearings,,,,,,,,. Document filed by Marty J Jackley. (Attachments: # 1 Affidavit OF DR GLENN RIDDER).(Swedlund, Paul) (Entered: 01/26/2026)
37	Jan 27, 2026	LETTER RESPONSE in Opposition to Motion addressed to Judge Katherine Polk Failla from Adam S. Sieff dated 01/27/2026 re: 33 LETTER MOTION for Conference DEFENDANT'S LETTER REGARDING MOTION TO DISMISS addressed to Judge Katherine Polk Failla from Amanda Miiller dated January 22, 2026. . Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/27/2026)
38	Jan 27, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 28 Motion for Paul S. Swedlund to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 28. (Signed by Judge Katherine Polk Failla on 1/26/2026) (rro) Modified on 1/27/2026 (rro). (Entered: 01/27/2026)
39	Jan 27, 2026	NOTICE OF APPEARANCE by Paul Swedlund on behalf of Marty J Jackley..(Swedlund, Paul) (Entered: 01/27/2026)
40	Jan 28, 2026	REPLY MEMORANDUM OF LAW in Support re: 14 MOTION for Preliminary Injunction . . Document filed by Mayday Health..(Sieff, Adam) (Entered: 01/28/2026)
41	Jan 28, 2026	DECLARATION of Chelsea T. Kelly in Support re: 14 MOTION for Preliminary Injunction .. Document filed by Mayday Health. (Attachments: # 1 Exhibit A.) SD AG Press Release, # 2 Exhibit B.) KY AG Press Release., # 3 Exhibit C.) Raisner Emails., # 4 Exhibit D.) Screenshot of Mayday's X.com Account, # 5 Exhibit E).SD Department of Revenue 2025 Annual Report, # 6 Exhibit F-A) Heartbeat Int'l Main Webpage., # 7 Exhibit F-B) Heartbeat Int'l Donation Page, # 8 Exhibit G-A) NIFLA Main Webpage, # 9 Exhibit G-B) NIFLA Donation Page, # 10 Exhibit H. Options Care Center Webpage, # 11 Exhibit I. Gianna House Webpage, # 12 Exhibit J. Mayday v. Jackley Transcript of TRO Ruling).(Kelly, Chelsea) (Entered: 01/28/2026)
	Jan 29, 2026	Minute Entry for proceedings held before Judge Katherine Polk Failla: Motion Hearing held on 1/29/2026 re: 14 MOTION for Preliminary Injunction filed by Mayday Health: Attorney Adam Sieff and Chelsea Kelly representing Plaintiff present. Attorneys Marty Jackley and Paul Swedlund representing Defendant present. The Court reserves decision on Plaintiff's motion. (Court Reporter Andrew Walker) (tn) (Entered: 02/09/2026)

Entry #	Filing Date	Description
42	Feb 2, 2026	RESPONSE in Opposition to Motion re: 14 MOTION for Preliminary Injunction . . Document filed by Marty J Jackley..(Swedlund, Paul) (Entered: 02/02/2026)
43	Feb 5, 2026	MOTION for Azeezat Adeleke to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32369920. Motion and supporting papers to be reviewed by Clerk's Office staff. Document filed by Mayday Health. (Attachments: # 1 Affidavit in Support of Motion for Pro Hac Vice of Azeezat Adeleke, # 2 Exhibit Certificate of Good Standing, # 3 Proposed Order In Support of Motion to Appear Pro Hac Vice).(Adeleke, Azeezat) (Entered: 02/05/2026)
	Feb 5, 2026	>>>NOTICE REGARDING PRO HAC VICE MOTION. Regarding Document No. 43 MOTION for Azeezat Adeleke to Appear Pro Hac Vice . Filing fee \$ 200.00, receipt number ANYSDC-32369920. Motion and supporting papers to be reviewed by Clerk's Office staff.. The document has been reviewed and there are no deficiencies. (rju) (Entered: 02/05/2026)
44	Feb 6, 2026	ORDER FOR ADMISSION PRO HAC VICE granting 43 Motion for Azeezat Adeleke to Appear Pro Hac Vice. The Clerk of Court is directed to terminate the pending motion at docket entry 43. (Signed by Judge Katherine Polk Failla on 2/6/2026) (rro) Transmission to Attorney Services/Help Desk. (Entered: 02/06/2026)
	Feb 9, 2026	NOTICE of Hearing: The Court will issue its oral decision regarding Plaintiff's motion on February 11, 2026, at 2:00 p.m. At the scheduled time, the parties shall call (855) 244-8681 and enter access code 2315 780 7370. (Telephone Conference set for 2/11/2026 at 02:00 PM in telephone or video conference before Judge Katherine Polk Failla.) ***No PDF is attached to this entry. (tn) (Entered: 02/09/2026)
45	Feb 9, 2026	TRANSCRIPT of Proceedings re: Argument held on 1/29/2026 before Judge Katherine Polk Failla. Court Reporter/Transcriber: Andrew Walker, (212) 805-0300. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. Redaction Request due 3/2/2026. Redacted Transcript Deadline set for 3/12/2026. Release of Transcript Restriction set for 5/11/2026..(Moya, Goretti) (Entered: 02/09/2026)
46	Feb 9, 2026	NOTICE OF FILING OF OFFICIAL TRANSCRIPT Notice is hereby given that an official transcript of a Argument proceeding held on 1/29/26 has been filed by the court reporter/transcriber in the above-captioned matter. The parties have seven (7) calendar days to file with the court a Notice of Intent to Request Redaction of this transcript. If no such Notice is filed, the transcript may be made remotely electronically available to the public without redaction after 90 calendar days....(Moya, Goretti) (Entered: 02/09/2026)
	Feb 11, 2026	Minute Entry for proceedings held before Judge Katherine Polk Failla: Telephone Conference held on 2/11/2026. Attorneys Adam Sieff, Ambika Kumar, and Chelsea Kelly, representing Plaintiff present. Attorneys AG Marty Jackley, Amanda Miiller, and Paul Swedlund, representing Defendant present. For the reasons set forth on the record, Plaintiffs motion for a preliminary injunction is DENIED. The parties shall show cause in writing by March 2, 2026, why the Court should not dismiss this case for lack of jurisdiction. (Court Reporter recorded) (tn) (Entered: 02/11/2026)
47	Feb 11, 2026	ORDER DENYING MOTION FOR PRELIMINARY INJUNCTION AND ORDER TO SHOW CAUSE denying 14 Motion for Preliminary Injunction; denying 20 Motion for TRO. For the reasons set forth on the record at the February 11, 2026 telephonic

Entry #	Filing Date	Description
		conference, the Court DENIES Plaintiff's motion for a preliminary injunction. (See Dkt. #14). The Clerk of Court is directed to terminate the pending motions at docket entries 14 and 20. In addition, given the manner of its resolution of Plaintiff's motion, the Court ORDERS the parties to show cause in writing on or before March 2, 2026, why it should not dismiss this case for lack of jurisdiction. Defendant's obligation to answer, move, or otherwise respond to the complaint is held in abeyance pending the disposition of this Order to Show Cause. (Signed by Judge Katherine Polk Failla on 2/11/2026) (rro) (Entered: 02/11/2026)
48	Feb 17, 2026	TRANSCRIPT of Proceedings re: CONFERENCE held on 2/11/2026 before Judge Katherine Polk Failla. Court Reporter/Transcriber: Marissa Lewandowski, (631) 813-9335. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. Redaction Request due 3/10/2026. Redacted Transcript Deadline set for 3/20/2026. Release of Transcript Restriction set for 5/18/2026.(js) (Entered: 02/17/2026)
49	Feb 17, 2026	NOTICE OF FILING OF OFFICIAL TRANSCRIPT Notice is hereby given that an official transcript of a CONFERENCE proceeding held on 2/11/2026 has been filed by the court reporter/transcriber in the above-captioned matter. The parties have seven (7) calendar days to file with the court a Notice of Intent to Request Redaction of this transcript. If no such Notice is filed, the transcript may be made remotely electronically available to the public without redaction after 90 calendar days....(js) (Entered: 02/17/2026)
50	Mar 2, 2026	MEMORANDUM OF LAW re: 47 Order on Motion for Preliminary Injunction,,, Order on Motion for TRO,,, . Document filed by Marty J Jackley. (Attachments: # 1 Exhibit Transcript 02.11.2026, # 2 Exhibit Transcript 02.20.2026).(Miiller, Amanda) (Entered: 03/02/2026)
51	Mar 2, 2026	RESPONSE re: 47 Order on Motion for Preliminary Injunction,,, Order on Motion for TRO,,, /Order to Show Cause. Document filed by Mayday Health..(Sieff, Adam) (Entered: 03/02/2026)
52	Mar 2, 2026	DECLARATION of Adam S. Sieff in Support re: 51 Response. Document filed by Mayday Health. (Attachments: # 1 Exhibit 1. 2026-01-16 SDNY TRO hearing, # 2 Exhibit 2. 2026-02-20 South Dakota Jdx Hearing, # 3 Exhibit 3. 2026-02-11 SDNY PI Oral Order).(Sieff, Adam) (Entered: 03/02/2026)
53	Mar 2, 2026	NOTICE OF APPEARANCE by Ryan William Hicks on behalf of Mayday Health..(Hicks, Ryan) (Entered: 03/02/2026)
54	Mar 6, 2026	NOTICE of Settlement and Mutual Release. Document filed by Mayday Health..(Sieff, Adam) (Entered: 03/06/2026)
55	Mar 6, 2026	FILING ERROR - DEFICIENT DOCKET ENTRY - SIGNATURE ERROR - STIPULATION OF VOLUNTARY DISMISSAL It is hereby stipulated and agreed by and between the parties and/or their respective counsel(s) that the above-captioned action is voluntarily dismissed, without prejudice against the defendant(s) Marty J Jackley and without costs pursuant to Rule 41(a)(1)(A)(ii) of the Federal Rules of Civil Procedure. Document filed by Mayday Health. Proposed document to be reviewed and processed by Clerk's Office staff (No action required by chambers)...(Sieff, Adam) Modified on 3/9/2026 (tp). (Entered: 03/06/2026)

Entry #	Filing Date	Description
	Mar 9, 2026	***NOTICE TO ATTORNEY REGARDING DEFICIENT VOLUNTARY DISMISSAL. Notice to Attorney Adam Sieff. RE-FILE Document No. 55 Stipulation of Voluntary Dismissal. The filing is deficient for the following reason(s): the stipulation of voluntary dismissal was not signed by all parties who have appeared. Re-file the document using the event type Stipulation of Voluntary Dismissal found under the event list Other Documents - select the correct filer/filers - select the correct party/parties the voluntary dismissal is against - and attach the correct signed (scanned ink signature image) PDF. (tp) (Entered: 03/09/2026)
56	Mar 9, 2026	STIPULATION OF VOLUNTARY DISMISSAL It is hereby stipulated and agreed by and between the parties and/or their respective counsel(s) that the above-captioned action is voluntarily dismissed, without prejudice against the defendant(s) Marty J Jackley and without costs pursuant to Rule 41(a)(1)(A)(ii) of the Federal Rules of Civil Procedure. Document filed by Mayday Health. Proposed document to be reviewed and processed by Clerk's Office staff (No action required by chambers)...(Sieff, Adam) (Entered: 03/09/2026)
57	Mar 11, 2026	JOINT NOTICE OF VOLUNTARY DISMISSAL: Pursuant to Federal Rule of Civil Procedure 41(a)(1)(A)(ii), Plaintiff Mayday Health hereby gives notice that the above-captioned action is voluntarily dismissed, without prejudice, and without fees and costs against Defendant Marty J. Jackley. Defendant, who has filed an Answer (ECF No. 34), consents to the dismissal of this action. (Signed by Judge Katherine Polk Failla on 3/11/2026) (rro) (Entered: 03/11/2026)